

Judgment Sheet
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Writ Petition No.7096 of 2022

Dr. Rana Zeeshan.
Versus
Government of Punjab, etc.

J U D G M E N T

Date of Hearing	18.05.2022
For the Petitioner	Rana Muhammad Iqbal Noon, Advocate.
For the Respondent	Mr. Ahmad Nadeem Gehla, Assistant Advocate General, Punjab.

Raheel Kamran J:- Through this writ petition, the petitioner has challenged the order dated 06.05.2022 passed by respondent No.2 whereby the services of the petitioner as Medical Officer (BPS-17/Adhoc) in District Headquarter Hospital, Lodhran were recommended to be terminated on account of professional misconduct, negligence and inefficiency, with immediate effect.

2. It may be pertinent to mention here that the impugned order contains a direction to respondent No.3 to relieve the petitioner with immediate effect and accordingly by relieving order dated 08.05.2022, respondent No.3 relieved the petitioner from his duty as Medical Officer, with immediate effect, on account of his professional misconduct, negligence and inefficiency subject to the decision of the Secretary Primary and Secondary Health Care Department, Punjab.

3. Facts in the background of the instant petition are that the petitioner was appointed as Medical Officer on *Ad hoc* basis through appointment order dated 17.07.2019 and was posted as Medical Officer in the District Headquarter Hospital, Lodhran and on account of death of

mk/4

Writ Petition No.7096 of 2022.

patient namely Sehrish Bibi d/o Abdul Razzaq aged 02 years which resulted in agitation and aggression by the attendants and was reported on electronic media. The Chief Minister, Punjab took notice of the incident and directed the authority to inquire into the matter and fix the responsibility. Accordingly, by Notification dated 05.05.2022 a Probe Committee was constituted to report by 06.05.2022 with clear recommendation for perusal/order of the Competent Authority. After probe of the matter, the Probe Committee unanimously concluded that unfortunate death of Sehrish was largely due to lack of awareness of patient's attendants/parents who took self-decision without obtaining professional advice from the available duty staff and repeatedly took the patient home. However, the hospital staff partly contributed to the above by clinical and professional slackness as well as lukewarm management oversight being continuously exercised by the Hospital Management. Accordingly, it was recommended by the Probe Committee that the regular inquiry under PEEDA Act, 2006 may be initiated against the managerial, clinical and allied staff on charges of managerial misconduct, professional negligence and noncompliance to patient and ward management protocols, which included name of the petitioner. Respondent No.2 issued the impugned order dated 06.05.2022 in compliance of the direction contained therein. Respondent No.3 also issued relieving order dated 08.05.2022.

4. It may be pertinent to mention here that on the day of probe, the petitioner has been marked absent, however, learned counsel for the petitioner explains that he had no notice of proceedings conducted by the Probe Committee and that no professional negligence was attributable to the petitioner whereas recommendation has been made against him without providing any opportunity of hearing.

5. Learned counsel for the petitioner contends that respondent No.2 had no lawful authority to pass the impugned order dated 06.05.2022. He adds that the impugned order reveals that the Section

MDL

Writ Petition No.7096 of 2022.

Officer has been directed to state that the services of the petitioner amongst two other officers are recommended to be terminated without specifying as to whose direction was being conveyed to the Secretary Primary and Secondary Healthcare Department, Government of the Punjab, Lahore. He maintains that on one hand, recommendation to terminate the services of the petitioner was made through impugned order, however, on the other hand, a direction was issued to respondent No.3 to relieve the petitioner, with immediate effect. He adds that the impugned order was passed for alleged professional misconduct, negligence and inefficiency in disregard of the recommendation of the Probe Committee to the effect that the regular inquiry under PEEDA Act, 2006 be initiated, *inter alia* against the petitioner. He lastly contends that the petitioner has been condemned unheard and the impugned orders have been passed in violation of the rules of natural justice.

6. Learned Law Officer, on the other hand, states that titled writ petition is pre-mature inasmuch as only a recommendation has been made against the petitioner through the impugned order dated 06.05.2022 whereupon the decision is yet to be taken by the competent authority i.e. respondent No.1 and the services of the petitioner have not been terminated as yet.

7. When confronted with the relieving order and asked about legality of the same, learned Law Officer states that the same is subject to the decision of the Secretary Primary and Secondary Healthcare Department, Government of the Punjab, Lahore. He, however, does not dispute that pursuant thereto the petitioner has been relieved from his duty as Medical Officer. Therefore, objection taken by the learned Law Officer that the titled writ petition is pre-mature is unsustainable in law.

8. It is settled law that when an employee is to be terminated on the ground of misconduct, which in itself is a stigma, it is mandatory for the department to hold regular inquiry enabling the employees to defend the allegations levelled against him before an unbiased and independent

MAJUS

forum. The Hon'ble Supreme Court of Pakistan, in the case reported as Pakistan Defence Officer's Housing Authority and Others v. Lt. Col. Syed Javaid Ahmed (2013 SCMR 1707) settled the principle in respect of the contract employees holding that if competent authority is intending to terminate the contract employees on account of misconduct, it is made obligatory/mandatory to hold regular inquiry into the matter. In another case reported as Zahoor Ahmed v. WAPDA and others (2001 SCMR 1566), the Hon'ble Supreme Court of Pakistan held that if authority is of the view that it should remove its contract employee then it has to probe into the allegation/charge of alleged misconduct and also to hold a regular inquiry affording him a fair opportunity to defend himself against the stigma of misconduct as the adverse effect of stigmatized dismissal from service always travel with his entire future career which circumvent him to have and hold a right of earning for livelihood akin to the right to life. In another case reported as Aleem Jaffar, Ex-Line Superintendent, WAPDA, Lahore v. WAPDA through its Chairman, Lahore and 2 others (1998 SCMR 1445), the Hon'ble Supreme Court of Pakistan held that "if the termination Order conveys a message of any stigma, the employee cannot be ousted from service without resorting to the procedure of Efficiency and Discipline Rules". Further reliance is also placed on the case reported as Muhammad Amjad v. The Chief Engineer, WAPDA and another (1998 PSC 337), wherein the Hon'ble Supreme Court of Pakistan held that even a contract employee cannot be terminated without the recourse of regular inquiry in terms of Efficiency and Discipline Rules if his termination is on account of some misconduct. In other case reported as The Secretary Government of the Punjab through Secretary Health Department, Lahore and Others v. Riaz-ul-Haq (1997 PLC (C.S.) 873), the Hon'ble Supreme Court of Pakistan, held that no doubt if a person is employed on contract basis and if the terms of employment provide the manner of termination of his services, the same can be terminated in terms thereof. However, if a person is to be condemned for

mkls

misconduct, in that event, even if he is a temporary employee or a person employed on contract basis or a probationer, he is entitled to a fair opportunity to clear his position, which means that there should be a regular inquiry in terms of the Efficiency and Discipline Rules before condemning him for the alleged misconduct. Further reliance is placed on the judgments of this Court in the cases of Muhammad Riaz v. Medical Superintendent, Services Hospital, Lahore and 2 others (2016 PLC (C.S) 296), Farhan Mehmood v. Secretary, Government of the Punjab Healthcare Department and 3 others (2018 PLC (C.S.) 70) and Muhammad Waris v. Director General, Punjab Emergency Services Rescue 1122 (2022 PLC (C.S.) 367).

9. Since the impugned order dated 06.05.2022 passed by respondent No.2 whereby direction has been issued to respondent No.3 to relieve the petitioner on the pretext of professional misconduct, negligence and inefficiency carries with it stigma, which has been admittedly passed without a regular inquiry to be held in accordance with law, therefore, the same is set aside for being void and having been passed without lawful authority. Likewise, the consequential order dated 08.05.2022 passed by respondent No.3 is also set aside for having been passed mechanically on unlawful direction of respondent No.2. The Competent Authority may, however, proceed against the petitioner on the basis of allegations in question after holding a regular inquiry strictly in accordance with law expeditiously.

10. This writ petition is accordingly *allowed*, in the above terms.

(RAHEEL KAMRAN)
JUDGE

Asim Shahzad